

**STATE OF VERMONT
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
BROOKES COWAN)
Roster No. 097-0000829)

Docket No. PST01-0802

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, through State Prosecuting Attorney, Edward G. Adrian, and Respondent Brookes Cowan, who stipulate and agree as follows:

Board Authority

1. The Allied Mental Health Practitioners Board ("Board") has jurisdiction to investigate complaints of unprofessional conduct pursuant to 3 V.S.A. §129, 129a; 26 V.S.A. §§4091, 4093; the Rules of Board of Allied Mental Health Practitioners (the "Rules"); and the Rules of the Office of Professional Regulation.

Facts

2. Respondent is a psychotherapist included in the State of Vermont's Roster of Nonlicensed and Noncertified Psychotherapists, holding roster number 097-0000829.
3. Respondent was originally placed on the roster on June 5, 2002 and Respondent's rostered status is currently set to expire on November 30, 2004.
4. Respondent has been employed as a Sociology Professor at the University of Vermont ("UVM") since 1983.
5. K.B. was a student of the Respondent while attending UVM as an undergraduate and she served as a teaching assistant for the Respondent for credit in her senior year, 1999-2000.
6. In the Fall of 2000, as a research assistant, K.B. began work on a research project with the Respondent.
7. In early March 2002, K.B. requested that the Respondent provide her with professional counseling and therapeutic services.
8. Respondent expressed her concern over the possibility of a dual relationship and requested that K.B. submit to Respondent a letter in which she was to reflect on the potential benefits and costs of becoming a client.

STATE OF VERMONT



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9. Respondent began providing services to K.B. two to three weeks after K.B. approached her with the inquiry.
10. Respondent and K.B. met for one hour therapy sessions on the following dates in 2002: March 12; March 26; April 2; April 19; April 16; April 23 and April 30.
11. The therapy sessions thereafter ended due to the changed status of K.B.'s employment whereby she could not afford the therapy.
12. Respondent was not included on the State of Vermont's Roster of Nonlicensed and Noncertified Psychotherapists until June 5, 2002, over a month after the therapy sessions with K.B. ended.
13. Respondent never provided K.B. or the Office of Professional Regulation with a disclosure statement.
14. Respondent did not keep notes of her therapeutic sessions with K.B.
15. All correspondence sent to the Respondent by the Office of Professional Regulation was addressed to the Respondent at the University of Vermont. All correspondence sent to the Office of Professional Regulation by the Respondent has been typed on University of Vermont "letterhead". The therapy sessions were never authorized by the University.
16. The complaint that led to the filing of the charges in this matter was made by a third party, not by K.B.

Charges

A. Respondent, by her acts as set forth in paragraphs 4 - 15 above, has engaged in unprofessional conduct pursuant to, and in violation of:

(i) 26 V.S.A. §4093(a)(7) (Entering into an additional relationship with a client, supervisee, research participant or student that might impair the psychotherapist's objectivity or otherwise interfere with his or her professional obligations); and

(ii) 3 V.S.A. §129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession); and

(iii) Board of Allied Mental Health Practitioners Rule 3.11 (All incorporating ACA Code of Ethics A.6(a) and (b)) ((a) Counselors are aware of their influential positions with respect to clients, and they avoid exploiting the trust and dependence of clients. Counselors make every effort to avoid dual relationships with clients that could impair professional judgment or increase the risk of harm to clients. When a dual relationship cannot be avoided, counselors take appropriate professional precautions such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no exploitation occurs) ((b) Counselors do not

STATE OF VERMONT



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accept as clients superiors or subordinates with whom they have administrative, supervisory, or evaluative relationships).

B. Respondent, by her acts as set forth in paragraphs 4 - 15 above, has engaged in the unauthorized practice of psychotherapy pursuant to, and in violation of:

(i) 26 V.S.A. §4083(a) (No person shall practice psychotherapy unless the person is entered on the roster of psychotherapists who are nonlicensed and noncertified); and

(ii) 26 V.S.A. §4084 (The provisions of section 127 of Title 3, relating to unauthorized practice, shall apply to a psychotherapist who practices without being listed on the roster.)

C. Respondent, by her acts as set forth in paragraphs 4 - 15 above, has violated 26 V.S.A. §4093(a)(3) (Unauthorized use of a protected title in professional activity.)

D. Respondent, by her acts as set forth in paragraphs 4 - 15 above, has violated Board of Allied Mental Health Practitioners Rule 3.14 (Requires that rostered psychotherapists submit a disclosure statement containing specified information to the client and to the Office of Professional Regulation.)

Understandings

1) Respondent understands that the Allied Mental Health Practitioners Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.

2) Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.

3) Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.

4) Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing the Stipulation and Consent Order.

5) Respondent voluntarily waives her right to charges and a contested hearing before the Allied Mental Health Practitioners Board.

6) Respondent does not admit to the charges above, but agrees that the Board may accept them as proven by the State in order to resolve the pending matter and that the Order set forth may be entered by the Board.

STATE OF VERMONT



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ORDER

Based upon the stipulation above, it is **ORDERED AND ADJUDGED** by the Board of Allied Mental Health Practitioners as follows:

E. Respondent, by her acts as set forth in paragraphs 4 – 15 above, has engaged in unprofessional conduct pursuant to, and in violation of:

(i) 26 V.S.A. §4093(a)(7) (Entering into an additional relationship with a client, supervisee, research participant or student that might impair the psychotherapist's objectivity or otherwise interfere with his or her professional obligations); and

(ii) 3 V.S.A. §129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession); and

(iii) Board of Allied Mental Health Practitioners Rule 3.11 (All incorporating ACA Code of Ethics A.6(a) and (b)) ((a) Counselors are aware of their influential positions with respect to clients, and they avoid exploiting the trust and dependence of clients. Counselors make every effort to avoid dual relationships with clients that could impair professional judgment or increase the risk of harm to clients. When a dual relationship cannot be avoided, counselors take appropriate professional precautions such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no exploitation occurs) ((b) Counselors do not accept as clients superiors or subordinates with whom they have administrative, supervisory, or evaluative relationships).

F. Respondent, by her acts as set forth in paragraphs 4 – 15 above, has engaged in the unauthorized practice of psychotherapy pursuant to, and in violation of:

(i) 26 V.S.A. §4083(a) (No person shall practice psychotherapy unless the person is entered on the roster of psychotherapists who are nonlicensed and noncertified); and

(ii) 26 V.S.A. §4084 (The provisions of section 127 of Title 3, relating to unauthorized practice, shall apply to a psychotherapist who practices without being listed on the roster.)

G. Respondent, by her acts as set forth in paragraphs 4 – 15 above, has violated 26 V.S.A. §4093(a)(3) (Unauthorized use of a protected title in professional activity.)

H. Respondent, by her acts as set forth in paragraphs 4 – 15 above, has violated Board of Allied Mental Health Practitioners Rule 3.14 (Requires that rostered psychotherapists submit a disclosure statement containing specified information to the client and to the Office of Professional Regulation.)

I. Respondent Brooke Cowan's roster status is hereby **SUSPENDED** for a period of fourteen (14) days commencing with the date of entry of this Stipulation and Consent

STATE OF VERMONT



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Order. Thereafter, the Respondent's roster status will be **CONDITIONED** for a period of two (2) years. The conditions are as follows:

(1) Length of Time Conditions Imposed.

These conditions shall remain in place until Respondent has completed two (2) years of supervised mental health practice. The Respondent shall receive at least one (1) hour of supervision for every thirty (30) hours of client contact during the two year conditioned period.

(2) Ethics Course.

Respondent shall, at her own expense, complete one (1) three credit graduate level course or one (1) three credit course of independent study at the graduate level focusing on ethical issues concerning dual relationships and confidentiality relating to notes and records. The course must be pre-approved by the Board. Respondent must submit written documentation (certificate of completion, etc.) to verify same to the satisfaction of the Board or its designee. Respondent shall complete this course within twelve (12) months of the date of entry of this Order.

(3) Disclosure Statement.

Respondent shall develop a sample disclosure statement that conforms with Rule 3.14 to be provided to all current and future clients. The disclosure statement shall be submitted to the Board for approval before being utilized. After the disclosure statement is approved by the Board, the Respondent shall provide the disclosure statement to all current and future clients in conformity with Rule 3.12.

(4) Practice Under Supervision.

Respondent shall practice psychotherapy only in a setting where Respondent is supervised by another rostered, licensed or certified mental health provider in good standing with the Vermont Board of Allied Mental Health Practitioners and that individual must first be submitted by the Respondent and pre-approved by the Board.

(5) Reports from Supervisor.

Within one (1) month of the Board approval of Respondent's supervisor and quarterly thereafter for both years the conditions are in place, Respondent shall cause the supervisor to submit to the Board an evaluation of Respondent's performance and attendance during that quarter. This report shall be submitted in writing on the supervisor's letterhead.

(6) Violation of the Consent Order.

If Respondent violates the terms of this Stipulation and Consent Order in any respect, the Board, after giving Respondent notice and an opportunity to be heard, may revoke the terms of the conditional roster status and take further disciplinary action. If a complaint or charges are filed against Respondent during the term of this Consent Order, the conditional roster period shall be extended until the matter is final.

(7) Out of State Practice/Residence.

STATE OF VERMONT



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Before any out-of-state practice or residence can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board prior to Respondent leaving the State of Vermont. If Respondent fails to receive such approval before leaving the State, none of the time spent out-of-state will be credited toward the fulfillment of the terms and conditions of this Consent Order. The Board will approve out-of-state practice so long as the Respondent can still comply with the provisions of this Consent Order.

(8) Completion of Conditional Period.

After the conditional period, the Respondent may petition the Board to remove any and all conditions on her roster status. The Respondent must present proof that she has fully complied with the terms of this Order.

J. Respondent shall bear the cost of compliance with the steps which Respondent has agreed to undertake pursuant to this Consent Order.

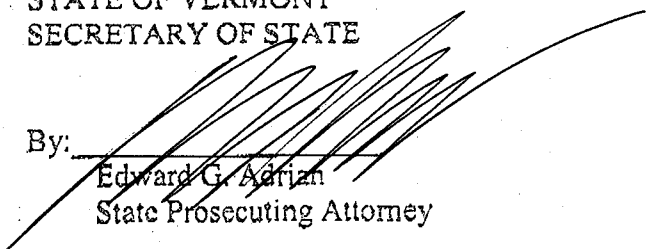
K. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

L. This Stipulation and Consent Order will remain part of the Respondent's rostering file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

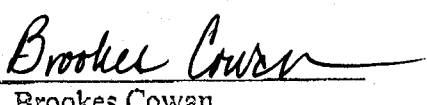
STATE OF VERMONT
SECRETARY OF STATE

Dated: 11/5/03

By: 
Edward G. Adrian
State Prosecuting Attorney

BROOKES COWAN
RESPONDENT

Dated: 10-21-03

By: 
Brookes Cowan

STATE OF VERMONT



Prosecuting Attorney
Office of
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Montpelier, VT 05602

ATTORNEY FOR RESPONDENT

APPROVED AS TO FORM:

Dated: Nov. 3, 2003

By: [Signature]
Attorney for Respondent

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 11/20/03

By: [Signature]
Chairperson

Date of Entry: 11/24/03

pst.cowan.stip

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